

**BEFORE THE
FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES**

CE GLOBAL NETWORK LLP, Complainant, v. OCEAN LINE LOGISTICS, INC., Respondent.	Docket No. 2062(F) Proceeding under Subpart T, 46 C.F.R. §§ 502.311–502.321
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COMPLAINANT'S REQUEST FOR LEAVE TO ADD AN ALTERNATIVE LEGAL BASIS

(46 U.S.C. § 41104(a)(2)(A) · no new party, transaction, exhibit or sum)

1. Complainant asks leave to add to its Verified Small Claim Complaint 46 U.S.C. § 41104(a)(2)(A), as informed by 46 C.F.R. part 532, as an alternative legal basis for the claim already before the Presiding Judge. It adds no party, transaction, exhibit or sum: the claim remains USD 4,875.00 with interest and the filing fee. The Reply will be filed separately within the time allowed by § 502.313 and does not depend on this request.
2. The facts are already pleaded. Section V of the Verified Complaint alleges that Respondent failed to provide "... *terminal invoice, charge calculation, or tariff item supporting the position that the shipment could not proceed to Jebel Ali*". Pages of Respondent's rules tariff are on the record. What follows characterises pleaded facts; it alleges no new fact.
3. Respondent is within it. A non-vessel-operating common carrier "*means a common carrier that does not operate the vessels by which the ocean transportation is provided*" (46 U.S.C. § 40102(17)), and § 41104(a) binds "*a common carrier*". Respondent holds FMC Tariff No. 001 (022035-001), invoiced Complainant in its own name and received the payment, describing itself as Complainant's "customer-facing contracting and invoicing party" (Answer ¶ 3; Decl. ¶ 2). Complainant does not allege Respondent was the shipper on the carrier's waybill; Ocean Link Forwarding, Inc. held that position.
4. Section 41104(a)(2)(A) provides that a common carrier shall not provide liner service "*not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under chapter 405 of this title, unless excepted or exempted under section 40103 or 40501(a)(2) of this title*". Respondent has identified no applicable exception; the conditional exemption in part 532 is addressed below. By its opening words, 46 C.F.R. § 545.4 interprets § 41102(c) only; Complainant does not abandon that claim and pleads § 41104(a)(2)(A) in the alternative.

5. No section of Subpart T governs amendment, and 46 C.F.R. § 502.321(a) excludes subparts A through Q. Complainant asserts no right to amend and asks the Presiding Judge directly, subject to such opportunity to respond as he directs. No hearing date is affected.

PROPOSED AMENDMENT

Complainant proposes to add the following paragraph to Section V, and no other change:

In the alternative, Complainant alleges a violation of 46 U.S.C. § 41104(a)(2)(A). Respondent is a common carrier within 46 U.S.C. § 40102(17) and holds FMC Tariff No. 001 (022035-001). It assessed and collected USD 4,875.00 on invoice INV-12431 in connection with the liner carriage of the two containers under B/L DALA20444700. Respondent has not identified a tariff provision applicable to that charge, or a negotiated rate arrangement accepted by Complainant before receipt of the cargo that stated or incorporated it. If Respondent relies on the part 532 exemption, Complainant requests production of that arrangement and the applicable rules-tariff provision; for a pass-through whose specific amount is not in the NRA or the rules tariff, an NVOCC "may only invoice the shipper for charges the NVOCC incurs, with no markup" (§ 532.5(d)(2)(iv)). On the present record, Respondent has not shown that the assessment and collection of that charge accorded with an applicable tariff provision or qualified for the exemption in part 532.

RELIEF REQUESTED

Complainant requests leave to add the paragraph above, and such time for Respondent to answer as the Presiding Judge directs.

VERIFICATION

I, Chen Zelin, Admin Manager of CE Global Network LLP, 27 Trevoise Crescent, Singapore 298042, am authorised to verify this request for Complainant. I have read it and the paragraph proposed in it. The quotation from Section V is taken from the Verified Small Claim Complaint as served, the quotations from the Answer from the Answer as served, and the tariff number from Respondent's tariff pages already on the record. The statements of fact in it are true and correct.

I declare under penalty of perjury under the laws of the United States of America, pursuant to 28 U.S.C. § 1746(1), that the foregoing is true and correct. Executed on 17 September 2026, at Singapore.

CERTIFICATE OF SERVICE

I certify that on 17 September 2026 I filed the foregoing Request by electronic mail with the Office of the Secretary (secretary@fmc.gov), copied to judges@fmc.gov, and served a copy on Respondent's counsel Shun C. Chen (shunchen@att.net) and on Respondent at wilson@oceanlineus.com and doc@oceanlineus.com.



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